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California Lawmakers Approve Groundbreaking Bill Banning Harmful Ultra-Processed Food in Schools, Bill Now Heads to Governor Newsom

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YONKERS, New York, Sept. 13 -- Consumer Reports posted the following news release on Sept. 12, 2025:

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California lawmakers approve groundbreaking bill banning harmful ultra-processed food in schools, bill now heads to Governor Newsom

AB 1264 directs California to identify especially harmful ultra-processed foods to be phased out of schools

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SACRAMENTO, CA - The California Assembly approved legislation today with widespread bipartisan support to ban unhealthy ultra-processed foods (UPFs) in public schools. AB 1264, authored by Assemblymember Jesse Gabriel, establishes a definition of UPFs and directs experts at the California Department of Public Health to identify a subcategory of especially harmful ones to be phased out of public schools by 2035.

The bill was approved unanimously by the California Senate yesterday and now heads to Governor Gavin Newsom, who issued an executive order in January to address the harms posed by ultra processed food. The groundbreaking bill was co-sponsored by Consumer Reports, the Environmental Working Group and Eat Real.

"Foods served in schools should fuel kids' bodies and brains for learning, but harmful ultra-processed foods do the opposite" said Brian Ronholm, director of food policy at Consumer Reports. "They offer little nutritional value and are deliberately engineered to make them hard to resist, which encourages unhealthy eating habits and overconsumption."

Ronholm continued, "Students should be provided with healthier options at school instead of ultra-processed food that puts their health at risk. This bill will help protect California kids and establish an important new standard for the rest of the nation by getting harmful ultra-processed food out of our schools."

Recent research has linked diets that include a lot of harmful ultra-processed foods -- such as soft drinks and packaged snacks -- to serious health risks, including cancer, cardiovascular disease, and Type 2 diabetes. An estimated 67 percent of the calories in food eaten by children, according to a study published in JAMA in 2021 (https://zwly9k6z.r.us-east-1.awstrack.me/L0/https:%2F%2Fwww.ama-assn.org%2Fdelivering-care%2Fpublic-health%2Fwhat-doctors-wish-patients-knew-about-ultraprocessed-foods/1/010001994027b614-810ea09f-1277-4f69-a7ec-fafbadf4de6f-000000/Bpkt4n179IGW5gLQruaShl6mar8=443).

The bill defines ultra-processed foods as those "high in" saturated fat, or added sugar, or sodium, (or has a non-sugar sweetener), and contains one or more of certain industrial ingredients, including colors, flavors, sweeteners, emulsifiers, and thickening agents. Raw agricultural products, minimally processed foods, and pasteurized milk are exempt from the definition of UPFs. .

Experts at the California Department of Public Health would then identify a subcategory of "UPFs of concern" to be phased out of school foods, based upon the following factors:

* whether the substance is banned, restricted, or subject to warnings in other states or outside the U.S.;

* whether the substance, based upon peer-reviewed evidence, is linked to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity, Type 2 diabetes, or other health harms associated with UPF consumption;

* whether the substance is hyper-palatable or may contribute to food addiction;

* whether the food meets the FDA definition for "healthy," and

* whether the food is a UPF due to a "common natural additive.

California's ban on the worst ultra-processed food from school meals is the latest example of the state's national leadership on food safety and school nutrition. In the last two years, the legislature has enacted a ban on Red Dye 3 and other toxic chemicals in food sold in the state and passed a ban on six other harmful synthetic dyes in school foods. Both bills were introduced by Assemblymember Gabriel and co-sponsored by Consumer Reports and the Environmental Working Group.

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Original text here: https://advocacy.consumerreports.org/press_release/california-lawmakers-approve-groundbreaking-bill-banning-harmful-ultra-processed-food-in-schools-bill-now-heads-to-governor-newsom/

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